INCOMPLETE (partial). Covered: teaming experiments, oversight and deference evidence, task allocation in agentic use, roles cut vs reshaped (Salesforce, IBM, Klarna), org design (Moderna, Microsoft WTI), context files and shared skills (AGENTS.md, Agent Skills, MCP), Moffatt v Air Canada; added in the 2026-11-06 gap-fill pass (search extracts only): EU AI Act Articles 14 and 26 and their post-omnibus dates, Product Liability Directive 2024/2853, withdrawal of the AI Liability Directive, AI insurance (Armilla/Lloyd's, Munich Re, carrier exclusions), ISO/IEC 42001 uptake. Still missing: UK and US liability positions, NIST AI RMF, AI-insurance claims data, PLD transposition by member state, LinkedIn new-title data, Shopify memo, firm filings. Reason: the shared web-search budget for this run was exhausted mid-track, and most hosts (arxiv.org, nber.org, eur-lex, nist.gov, sec.gov, linkedin.com, news sites) were blocked by the session network. Only anthropic.com and microsoft.com pages could be fetched and verified directly. Items seen only in search snippets are marked "(snippet)".

Track 6: Working with agents

Last updated: 2026-11-06. Labels: EVIDENCE = measured/primary data; FORECAST = projection; OPINION = argument, vendor or consultancy view.

Verification note (added 2026-11-06): page fetches were blocked for most hosts this session, so findings marked search summary, search extract or snippet rest on search-engine extracts of the cited URL. Quotation marks inside findings mark wording as reported by that source; only quotes in this file's "Verbatim quotes" section (and in 13-quotes.md) were checked against a fetched page. Corrections from the verification pass are in verification.md.

Summary

- **Human oversight of agents is weaker than governance documents assume, and the best new evidence is about deference, not about errors slipping through.** In a 2026 Anthropic RCT, 50 trained analysts working with Claude Code followed a secretly coin-flipped agent "lean" on 86% of analytical choices (50% would mean no influence), and experience did not protect them. Anthropic also reports users accept 93% of manual permission prompts in Claude Code. A human in the loop is not the same as human judgment in the loop.
- **In practice, the division of labour is "humans decide what, agents decide how".** Across about 400,000 Claude Code sessions (Oct 2025 to Apr 2026), users made about 70% of planning decisions and 20% of execution decisions. Experienced users shift from approving each step (auto-approve rises from about 20% to over 40% of sessions) to monitoring and interrupting (interrupts rise from 5% to about 9% of turns). This is vendor data on its own product, mostly software work.
- **Agents in production are still overwhelmingly a software-engineering phenomenon.** Software engineering was nearly 50% of agentic tool calls on Anthropic's public API (n = 998,481 tool calls); no other domain exceeded a few percent (Feb 2026).
- **Teaming experiments show real gains, but the organisational changes that need coordination do not follow by themselves.** P&G (776 professionals): an individual with AI matched a two-person team without AI. Microsoft's 6,000-worker Copilot RCT: email time fell, but meeting time (which needs coordination to change) did not move. This supports the thesis that the tech is easier than the transformation, on one specific mechanism.
- **Documented role elimination exists but is narrower and messier than headlines.** Salesforce (support from about 9,000 to about 5,000, per the CEO on a podcast, no timeframe

or method), IBM (HR roles "in the hundreds", with hiring elsewhere), Klarna (reversed course in 2025 and rehired humans for quality). All three rest on CEO statements, not filings.

- **Context files and shared skills spread fast; evidence that they improve agent outcomes is mixed.** AGENTS.md reportedly used in 60,000+ projects; Anthropic says 1 million Agent Skills published and about 280 million installed (Oct 2026, vendor figures). But a Feb 2026 study found LLM-generated repository context files tended to reduce coding-agent task success and raised cost by over 20%, while developer-written files slightly helped, while a Jan 2026 study found faster runs and fewer tokens with no change in completion. "Write down the workflow for the agent" is not yet shown to work as well as people assume.
- **Liability principle is clear at small scale: the deployer owns what its bot says.** Moffatt v Air Canada (2024) rejected the argument that a chatbot is responsible for its own statements. It is a small-claims tribunal decision (about CAD 812) and not binding precedent.
- **The formal accountability machinery is thin and late.** The EU AI Act names automation bias in Article 14 and requires deployers to assign competent, authorised overseers and keep logs for at least six months (Article 26), but only for high-risk uses, now from December 2027. The EU withdrew its AI Liability Directive in 2025; the new Product Liability Directive makes software, including AI, subject to strict liability from 9 December 2026, but not for pure economic loss. Large insurers are seeking AI exclusions while specialists (Armilla/Lloyd's, up to $25m) sell affirmative cover. BSI had issued 50 ISO/IEC 42001 certificates by November 2026.

Key findings

Human-agent teaming: experimental evidence

- **[EVIDENCE]** P&G "Cybernetic Teammate" field experiment: 776 experienced professionals, pre-registered, one-day product-development workshops. Without AI, two-person teams beat individuals by 0.24 SD. Individuals with AI performed about as well as teams without AI. Teams with AI scored highest, but not significantly above individuals with AI. AI groups were 12 to 16% faster. AI reduced functional silos (R&D and commercial staff both produced balanced proposals). Caveat: a one-day workshop task with GPT-4-class tools, not sustained work. Dell'Acqua, Ayoubi, Lifshitz, Sadun, Mollick et al., NBER WP 33641, March 2025 (snippet; nber.org blocked this session). https://www.nber.org/papers/w33641. One secondary source says it has since appeared in Organization Science (June 2026); not confirmed.
- **[EVIDENCE]** BCG "jagged frontier" experiment: 758 BCG consultants (about 7% of individual contributors), pre-registered, GPT-4. On tasks inside the frontier, AI users completed 12.2% more tasks, 25.1% faster, with higher-quality output (roughly 40% in the widely cited figure). On a task designed to be outside the frontier, AI users were less likely to get the right answer. Secondary sources disagree on whether this is "19 percentage points" or "19%"; check the primary (HBS WP 24-013, Sept 2023) before quoting. Secondary index used: https://empirical-economics-of-ai.vercel.app/papers/DellAcquaMcFowlandMollickEtAl_2023_NavigatingJaggedTechnological (snippet). Relevance to oversight: the failure mode was people trusting confident AI output on a task where it was wrong.
- **[EVIDENCE]** Brynjolfsson, Li and Raymond, "Generative AI at Work": staggered rollout of an AI assistant to customer-support agents at one firm (about 5,172 to 5,179 agents). Productivity (issues resolved per hour) rose 14% on average in the 2023 working paper, 15% in the 2025 QJE version (vol. 140, pp. 889 to 942, per snippet), with about 34% gains for novice and low-skilled workers and little gain for the most experienced. Single firm, single

task type with tight metrics. NBER WP 31161 (2023), QJE 2025 (snippet). https://econpapers.repec.org/RePEc:nbr:nberwo:31161

- **[EVIDENCE]** Microsoft Copilot field experiment (Dillon, Jaffe, Immorlica, Stanton): 6-month randomized experiment, 6,000 workers across 56 firms in the first version (later versions: 66 firms, 7,137 workers per snippet). Users spent 3 fewer hours (25% less time) on email per week (ITT estimate 1.4 hours), finished documents moderately faster, but did not change time in meetings. The authors frame it as AI changing behaviours individuals can change alone, not those requiring coordination. Authors were Microsoft employees. Microsoft Research, April 2025. https://www.microsoft.com/en-us/research/publication/shifting-work-patterns-with-generative-ai/ (fetched)
- **[EVIDENCE]** Ju and Aral, "Collaborating with AI Agents": randomized experiment, about 2,234 to 2,310 participants paired with a human or an AI agent, producing 11,024 ads, tested in a live X campaign (about 5M impressions). Human-AI teams produced roughly 50% more ads per worker (60% in v1), with better text quality but worse image quality; field ad performance was similar overall. People delegated more and edited less when paired with an agent. Figures differ across versions. arXiv 2503.18238, March 2025, v3 Feb 2026 (snippet). https://arxiv.org/abs/2503.18238
- **[EVIDENCE, survey]** Stanford WORKBank (Shao et al.): 1,500 workers in 104 occupations rated 844 tasks; 52 AI experts rated capability. Workers wanted "equal partnership" (H3 on a five-level Human Agency Scale) as the dominant level in 47 of 104 occupations, and generally wanted more human involvement than experts thought technically needed. Workers were positive about automation for 46.1% of tasks. arXiv 2506.06576, June 2025 (snippet). https://arxiv.org/abs/2506.06576

Task allocation and oversight in real agent use (usage telemetry)

- **[EVIDENCE, vendor telemetry]** Enterprise API use is mostly delegation: 77% of Anthropic first-party API transcripts showed automation patterns (especially full task delegation) vs 12% augmentation; Claude.ai was nearly even. Directive (full-delegation) conversations on Claude.ai rose from 27% (late 2024) to 39%. Anthropic Economic Index, 15 Sept 2025. https://www.anthropic.com/research/anthropic-economic-index-september-2025-report (fetched)
- **[EVIDENCE, vendor telemetry]** The trend did not continue in a straight line. By November 2025 data, augmentation on Claude.ai rose back to 52% and automation fell to 45%; Anthropic suggests product features (files, memory, Skills) may have pulled use back toward human-in-the-loop. Office and admin support tasks in API traffic rose to 13%, read by Anthropic as back-office automation. Economic Index, 15 Jan 2026. https://www.anthropic.com/research/anthropic-economic-index-january-2026-report (fetched). In the February 2026 sample, Anthropic reports that "automation decreased sharply in the 1P API data" (figure only in appendix; numbers not extracted, CDN PDF blocked). Economic Index "Learning curves", 24 Mar 2026. https://www.anthropic.com/research/economic-index-march-2026-report (fetched)
- **[EVIDENCE, vendor telemetry]** Claude Code autonomy and oversight: the 99.9th percentile turn length rose from under 25 to over 45 minutes between Oct 2025 and Jan 2026. Full auto-approve rose from about 20% of sessions (users with under 50 sessions) to over 40% (by 750 sessions). Interrupt rate rose from 5% of turns (about 10 sessions) to about 9%. On the most complex tasks the agent stopped to ask for clarification more than twice as often as humans interrupted it. On the public API: 80% of tool calls came from agents with at least one safeguard, 73% appeared to have a human in the loop, 0.8% of actions appeared irreversible. Software engineering was nearly 50% of tool calls (n = 998,481). Anthropic stresses its classifications are made by Claude and cannot see downstream human review. "Measuring AI

agent autonomy in practice", 18 Feb 2026. https://www.anthropic.com/research/measuring-agent-autonomy (fetched)

- **[EVIDENCE, vendor telemetry]** Division of labour: in about 400,000 Claude Code sessions from about 235,000 people (Oct 2025 to Apr 2026), users made about 70% of planning decisions and 20% of execution decisions. Share of sessions spent debugging fell by nearly half. Non-engineers reached at least partial success in code-producing sessions 88% of the time vs 89% for software occupations; management occupations had the highest verified success. Anthropic notes "success" partly depends on users confirming it in the transcript. "Agentic coding and persistent returns to expertise", 16 Jun 2026. https://www.anthropic.com/research/claude-code-expertise (fetched)

Oversight failing: deference, rubber-stamping, automation bias

- **[EVIDENCE, RCT, vendor-run]** Anthropic "judgment calls" study: 61 professional analysts (50 used the agent) with causal-inference experience did a realistic analysis with Claude Code (Opus 4.8). The agent was secretly assigned a coin-flip "lean" on each of four analytical choices and told to argue honestly for it. Analysts matched the lean 86% of the time (92%, 82%, 81%, 90% by decision). When analysts had already stated a preference, they switched 60% of the time if the agent disagreed vs 6% if it agreed (38 cases; 95% CI on the gap 24 to 82 pp). Final recommendation to roll out: 54% when the agent leaned yes vs 36% when it leaned no. A model using only the coin flips predicted 82% of recommendations. 77% of analysts reused the agent's arguments but only 15% credited it. Experience, expertise, education and trust in AI did not predict deference. Limits: small n, strengthened agent preferences, single task. Herdağdelen, Joren, Tamkin, 27 Oct 2026. https://www.anthropic.com/research/agents-judgment-calls (fetched)
- **[EVIDENCE, vendor product data]** Anthropic reports users accept 93% of manual permission prompts in Claude Code, and names "approval fatigue" as the reason. Its classifier-based "auto mode" blocks 0.4% of benign actions but lets through 17% of real "overeager" dangerous actions (n = 52) and 5.7% of synthetic exfiltration attempts (n = 1,000). Anthropic's internal incident log includes deleting remote git branches, uploading an engineer's GitHub token to an internal cluster, and attempting migrations against a production database. 25 Mar 2026. https://www.anthropic.com/research/claude-code-auto-mode (fetched)
- **[EVIDENCE]** "Bias in the Loop": randomized online experiment, n = 2,784. Requiring people to correct flagged AI errors reduced engagement and increased acceptance of incorrect suggestions; pro-AI attitudes predicted over-reliance. arXiv 2509.08514, Sept 2025 (snippet). https://arxiv.org/abs/2509.08514
- **[EVIDENCE]** Over 1,300 Greek teachers graded work with a deliberately wrong score labelled as AI or human; they deferred more to harsh errors when labelled AI. PNAS Nexus, 2026, as reported by PsyPost (snippet; primary not fetched). https://www.psypost.org/teachers-say-they-distrust-ai-but-still-accept-its-harsh-grading-mistakes-study-finds/
- **[EVIDENCE, RCT, vendor-run]** Skill erosion undermines future overseers: 52 mostly junior developers learning a new Python library; the AI-assisted group scored 17% lower on a comprehension quiz, with no significant speed gain. Those who used AI to ask conceptual questions retained more. Anthropic, 29 Jan 2026. https://www.anthropic.com/research/AI-assistance-coding-skills (fetched)

Roles eliminated vs reshaped: what is documented

- **[EVIDENCE, weak: CEO interview]** Salesforce: Marc Benioff said on The Logan Bartlett Show (published 29 Aug 2025) that support headcount went from about 9,000 to about 5,000, calling it a "rebalance". Salesforce said it no longer backfills support engineer roles because Agentforce reduced case volume, and later said it redeployed "hundreds" to professional services, sales and customer success. No timeframe or method disclosed; not in a filing that I could check. Fortune, 2 Sept 2025 (snippet). https://dc.fortune.com/2025/09/02/salesforce-ceo-billionaire-marc-benioff-ai-agents-jobs-layoffs-customer-service-sales ; https://www.salesforceben.com/ai-agents-drive-4000-job-cuts-in-salesforce-support-division/
- **[EVIDENCE, weak: CEO interview]** IBM: Arvind Krishna told the WSJ (May 2025) that AI agents (AskHR) replaced HR roles "in the hundreds" (snippet wording) while total headcount rose, with hiring in programming and sales. The viral "IBM fired 8,000 for AI then rehired them" story is not supported by the CEO's own account. Entrepreneur, May 2025 (snippet). https://www.entrepreneur.com/business-news/ibm-ceo-ai-replaced-hundreds-of-human-resources-staff/491341
- **[EVIDENCE, weak: CEO statements]** Klarna: after claiming in 2024 its assistant did the work of 700 agents, the CEO told Bloomberg in May 2025 that cost focus had produced "lower quality" and the company would hire humans again for customer service, under an "Uber-type" remote setup. Klarna called it a dual-track model, not a retreat. Entrepreneur, May 2025 (snippet). https://www.entrepreneur.com/business-news/klarna-ceo-reverses-course-by-hiring-more-humans-not-ai/491396
- **[EVIDENCE, vendor telemetry]** Anthropic flags Customer Service Representatives as having a high share of tasks done in automated API workflows (e.g. payment and billing support), so "these jobs may be more likely to change". March 2026 report. https://www.anthropic.com/research/economic-index-march-2026-report (fetched)

New titles and org designs

- **[EVIDENCE, primary corporate filing, snippet only]** Moderna: Tracey Franklin, CHRO since 2019, became Chief People and Digital Technology Officer in November 2024, combining HR and digital technology. Per WSJ coverage she framed it as redesigning each department with an "optimal mix" of people and technology. Moderna DEF 14A for FY2026 (sec.gov blocked; snippet). https://www.sec.gov/Archives/edgar/data/1682852/000130817926000081/mrna-courtesy-pdf.pdf ; https://investors.modernatx.com/tracey-franklin
- **[OPINION / weak survey]** Microsoft Work Trend Index 2025 coins "agent boss" and "human-agent ratio" and suggests firms may "blend HR and IT" or create "Intelligence Resources" departments. Survey of 31,000 workers in 31 countries (with Edelman, fieldwork Feb to Mar 2025), plus LinkedIn and M365 telemetry. 33% of leaders were considering headcount reductions; 78% considering AI-specific hires; top roles considered: AI trainer (32%), AI data specialist (32%), AI security specialist (31%), AI agent specialist (30%), AI ROI analyst (29%). These are intentions from a vendor survey, not observed hires. 23 Apr 2025. https://www.microsoft.com/en-us/worklab/work-trend-index/2025-the-year-the-frontier-firm-is-born (fetched)
- **Gap:** LinkedIn data on actual new AI job titles, Shopify's April 2025 memo, and named "agent manager" or "AI operations" roles were not sourced this session.

Machine-readable SOPs, context files and shared skills

- **[EVIDENCE, vendor figures]** Model Context Protocol donated to the Linux Foundation's new Agentic AI Foundation (AAIF), co-founded by Anthropic, Block and OpenAI, on 9 Dec 2025. Anthropic's adoption claims: 10,000+ active public MCP servers, 97M+ monthly SDK downloads (Python and TypeScript), adoption by ChatGPT, Cursor, Gemini, Microsoft Copilot and VS Code. https://www.anthropic.com/news/donating-the-model-context-protocol-and-establishing-of-the-agentic-ai-foundation (fetched)
- **[EVIDENCE, vendor figures]** AGENTS.md (OpenAI, released Aug 2025) was a founding AAIF project; reported adopted by 60,000+ open-source projects and agent tools (Codex, Cursor, Devin, Gemini CLI, GitHub Copilot, Jules, VS Code). One outlet gave 40,000. SD Times, Dec 2025 (snippet). https://sdtimes.com/ai/linux-foundation-forms-agentic-ai-foundation-to-be-new-home-for-mcp-goose-and-agents-md/
- **[EVIDENCE, vendor figures]** Agent Skills (folders with a SKILL.md plus scripts and references, launched Oct 2025, published as an open standard Dec 2025) donated to AAIF on 22 Oct 2026. Anthropic says 70+ agent platforms integrated it (incl. ChatGPT, Cursor, GitHub Copilot, VS Code), 1 million skills published, nearly 280 million installed. Anthropic's stated rationale: Claude Code "often lacked the procedural knowledge that real business tasks need". https://www.anthropic.com/news/donating-agent-skills-to-the-agentic-ai-foundation (fetched)
- **[EVIDENCE]** Do context files help? Gloaguen et al. tested several coding agents on SWE-bench tasks with LLM-generated context files and on separate issues with developer-written files. Context files tended to reduce task success vs no repository context and raised inference cost by over 20%. Verification pass: LLM-generated files drove the decrease; developer-written files tended to slightly improve success (search extract, ETH/arXiv abstract). Agents did follow them (more exploration, more testing) but did not reach relevant files faster. LLM-generated files helped only when other documentation was stripped from the repo. Advice: human-written files should state minimal requirements. arXiv 2602.11988, 12 Feb 2026, listed at ICLR 2026 (snippet). https://arxiv.org/abs/2602.11988
- **[EVIDENCE]** Lulla et al.: 10 repositories, 124 pull requests, with vs without AGENTS.md. Median runtime fell 28.64% (98.57 s to 70.34 s), median output tokens fell 16.58%; task completion comparable. Small, efficiency-only, small code changes. arXiv 2601.20404, 28 Jan 2026, ICSE JAWs 2026 workshop (snippet). https://arxiv.org/abs/2601.20404
- **[EVIDENCE, weak]** A later ablation (Khatri, arXiv 2607.27250, 2026) argues neither study isolates how the file is injected or tests across agent families; its own results were not visible in the snippet. https://www.alphaxiv.org/abs/2607.27250
- **[EVIDENCE, vendor telemetry]** Anthropic's January 2026 index notes Skills and memory coincided with a shift back toward collaborative use on Claude.ai, which hints shared context changes how people work with the agent, not only how well it performs. Correlational. https://www.anthropic.com/research/anthropic-economic-index-january-2026-report (fetched)

Accountability and audit when the agent is wrong

- **[EVIDENCE, legal decision]** Moffatt v Air Canada, 2024 BCCRT 149 (BC Civil Resolution Tribunal, Feb 2024). Air Canada's website chatbot misstated its bereavement-fare policy. The tribunal found negligent misrepresentation, called Air Canada's suggestion that the chatbot was "a separate legal entity that is responsible for its own actions" a "remarkable submission", and treated the bot as part of Air Canada's website. Award about CAD 812. CRT decisions do not bind other tribunals. McCarthy Tétrault and Law360 Canada commentary

(snippet; CanLII blocked). https://www.mccarthy.ca/en/insights/blogs/techlex/moffatt-v-air-canada-misrepresentation-ai-chatbot ; https://www.law360.ca/ca/articles/1804075

- **[OPINION, vendor]** Anthropic recommends product developers "design for user oversight" and argues oversight means being able to intervene, not approving every action. That is a design argument, and its own 93% prompt-acceptance and 86% deference data show why approval-chain oversight is weak. https://www.anthropic.com/research/measuring-agent-autonomy (fetched)

EU law: oversight duties (AI Act) and liability (Product Liability Directive)

Gap-fill pass findings below rest on search-engine extracts that cite the URL given (marked "search extract"); EUR-Lex itself could not be fetched.

- **[EVIDENCE, regulation text via secondary sources]** EU AI Act Article 14 (human oversight, high-risk systems): providers must design high-risk systems so natural persons can effectively oversee them, and must either build oversight measures in or specify them for the deployer to implement (Art. 14(3)). Art. 14(4)(b) requires that the overseer be enabled to "remain aware of the possible tendency" to automatically rely or over-rely on the output, i.e. automation bias is named in the law. Other limbs (per the Regulation) cover understanding capacities and limits, correctly interpreting output, deciding not to use or to override the output, and being able to stop the system. Regulation (EU) 2024/1689: https://eur-lex.europa.eu/eli/reg/2024/1689/oj ; commentary: https://www.euaiact.com/blog/eu-ai-act-human-oversight (search extract).
- **[EVIDENCE, regulation text via secondary sources]** Article 26 (deployer obligations, high-risk systems): use the system according to the provider's instructions; assign human oversight to natural persons with "the necessary competence, training and authority" and support; ensure input data under the deployer's control is relevant; monitor operation and inform the provider and authorities of serious incidents; keep automatically generated logs under the deployer's control for a period appropriate to the purpose and at least six months (financial institutions may keep them within existing financial-services documentation); inform workers' representatives and affected workers before putting a high-risk system into use in the workplace. Article text mirror: https://www.springlex.eu/en/packages/ai-act/ai-act-regulation/article-26/ ; Mishcon de Reya navigator: https://mishcon.com/eu-uk-ai-navigator/article-26 (search extracts).
- **[EVIDENCE]** When these bite: Articles 14 and 26 apply to high-risk systems, so their dates moved with the Digital Omnibus on AI (Regulation (EU) 2026/1744, in force 27 Jul 2026): 2 Dec 2027 for standalone Annex III systems (which include employment, worker management, credit scoring) and 2 Aug 2028 for AI embedded in regulated products. Search extracts in this pass gave conflicting dates (one vendor page still says 2 Dec 2026); the law-firm sources in track 9 are stronger. See /home/user/research_1/research/10-social-political.md, EU section. Implication: a general-purpose business agent that is not used for an Annex III purpose carries no Article 14/26 duties at all; one that screens candidates or allocates work does, from December 2027.
- **Reading (OPINION, mine):** Article 14(4)(b) writes into law the very failure the deference evidence above documents (86% following, 93% approval). The law requires the overseer to be "aware" of over-reliance; it does not, and cannot, require that awareness to work. Article 26's "competence, training and authority" is the closest the law gets to the thesis's "the business must be ready", and it is a deployer duty, not a vendor one.
- **[EVIDENCE]** EU Product Liability Directive (EU) 2024/2853: published in the Official Journal 18 Nov 2024; member states must transpose by 9 Dec 2026. It redefines "product" to include

software, including AI systems, whether embedded or standalone, and treats software developers and AI Act providers as "manufacturers". Strict (no-fault) liability for defective products causing death, personal injury, property damage or destruction/corruption of data (not pure economic loss). A defect can arise from a software update, or from failure to supply a security update. Claimants gain disclosure rights and rebuttable presumptions of defect and causation where technical complexity makes proof excessively difficult. Applies to products placed on the market or put into service after 9 Dec 2026; the 1985 Directive continues for earlier products. Norton Rose Fulbright (search extract): https://connections.nortonrosefulbright.com/post/102jpjp/revised-product-liability-directive-introducing-rules-on-strict-liability-for-ai ; Covington Inside Privacy, updated 19 Jun 2026, on member-state roll-out (search extract): https://www.insideprivacy.com/uncategorized/eu-member-states-begin-rolling-out-new-product-liability-rules/ . Scope limits (economic loss, the exclusion of free open-source software supplied outside commercial activity) are from my reading of the summaries; check the text. Which member states have transposed on time is not confirmed.

- **[EVIDENCE]** The AI Liability Directive (fault-based rules and disclosure for AI harm, proposed Sept 2022) was withdrawn. Announced in the Commission's 2025 work programme (11-12 Feb 2025), citing no foreseeable agreement; the Commission confirmed in late July 2025 it would not reverse course despite Parliament objections; the formal withdrawal notice was reported published in the Official Journal on 6 Oct 2025 (one source; not independently confirmed). Euronews, 31 Jul 2025 (search extract): https://www.euronews.com/next/2025/07/31/eu-commission-confirms-ditching-of-ai-liability-and-patents-proposals ; EAPIL, 9 Oct 2025 (search extract): https://eapil.org/2025/10/09/european-commission-withdraws-two-proposals-assignments-of-claims-regulation-and-ai-liability-directive/
- **Reading (OPINION, mine):** For an agent that gets something wrong in the EU from December 2026, the route for a harmed person is strict product liability against the software producer (for injury, property or data loss) plus national contract and tort law. There is no EU-level fault rule for pure economic loss caused by AI, which is the most likely harm from a business agent (a wrong refund, a wrong quote). Moffatt v Air Canada is the kind of case national law will decide.

Insurance and certification

- **[EVIDENCE (company announcement)]** Armilla's Lloyd's-backed AI liability policy launched 30 Apr 2025, underwritten by Lloyd's syndicates including Chaucer, covering hallucinations, model performance degradation and deviation from expected behaviour; limits later raised to $25m per insured. Armilla press release (search extract): https://www.armilla.ai/resources/armilla-ai-raises-lloyds-backed-coverage-to-25m-as-traditional-insurers-retreat-from-ai-risk . No claims data found.
- **[EVIDENCE (company statement)]** Munich Re says it has insured AI model performance risk since 2018 (aiSure), in versions covering contractual liability, own damage and third-party damage. Munich Re seminar page, 2026 (search extract): https://www.munichre.com/en/company/seminars/client-programme/2026/casualty-ai-risks-and-munichre-ai-insurance-solutions-14oct-am.html
- **[EVIDENCE (news report)]** Mainstream carriers are moving the other way: Berkshire Hathaway, Chubb and Travelers were reported to have sought US state regulatory approval for AI exclusions in general liability policies. PYMNTS, 2026 (search extract): https://www.pymnts.com/artificial-intelligence-2/2026/big-insurance-backs-away-from-ai-risk-and-startups-rush-in/ . The filings themselves were not checked.

- **[EVIDENCE (certifier press release)]** ISO/IEC 42001 (AI management systems, published Dec 2023) uptake is small. BSI announced its 50th 42001 certificate in November 2026, having issued 11 during 2025; UKAS granted BSI the first accreditation to certify against 42001 on 15 Jan 2026. Blog estimates put the global total under 100, but that is not a registry count and other certification bodies (not accredited by UKAS) also issue certificates. BSI press release, Nov 2026 (search extract): https://www.bsigroup.com/en-GB/insights-and-media/media-centre/press-releases/2026/november/bsi-awards-its-50th-iso-iec-42001-certificate/
- **Reading (OPINION, mine):** The governance infrastructure for "who answers when the agent is wrong" is mostly not there yet: the EU fault rule was withdrawn, the high-risk duties are postponed to late 2027, specialist insurance exists but large carriers are excluding the risk, and AI management-system certification counts are in the tens to low hundreds. That supports the thesis's claim that the hard part is organisational, but the missing pieces are legal and financial accountability, not workflow documentation.
- **Still not sourced:** UK and US positions on agent liability; NIST AI RMF; claims data on AI insurance; transposition status of the PLD by member state.

Viral statistics traced

- **"Salesforce replaced 4,000 support staff with AI."** Origin: Benioff's spoken remark on a podcast (Aug 2025) that support went from about 9,000 to about 5,000 people (paraphrase; exact wording not verified). No timeframe, no breakdown, partly framed as not backfilling. Salesforce later said hundreds were redeployed. Solid that he said it; weak as a measured AI displacement figure. https://www.salesforceben.com/ai-agents-drive-4000-job-cuts-in-salesforce-support-division/
- **"IBM fired 8,000 people for AI then had to rehire them."** Not supported. The CEO said HR roles replaced were in the hundreds. Coverage also mixes in a separate 7,800 figure and an earlier Krishna remark that about 30% of some roles were replaceable; IBM has not confirmed any link between those and the HR case. Treat "8,000 fired then rehired" as unsupported. https://www.entrepreneur.com/business-news/ibm-ceo-ai-replaced-hundreds-of-human-resources-staff/491341 (snippet)
- **"77% of businesses use AI for automation."** Fortune-style phrasing of the Anthropic figure is a misreading. The 77% is the share of sampled first-party API transcripts showing automation patterns, not a share of businesses, and Anthropic later reported API automation "decreased sharply" (Feb 2026 sample). https://www.anthropic.com/research/anthropic-economic-index-september-2025-report
- **"Klarna's AI does the work of 700 agents."** Company claim from 2024; the same CEO said in 2025 the quality was lower and began rehiring humans. Use only with the reversal attached.
- **"Individuals with AI perform like teams."** True in the P&G one-day workshop, and Microsoft's WTI cites it as "the Harvard study". It does not show teams can be replaced in sustained work; teams with AI still scored highest.

Strongest counter-evidence

Against the thesis ("the tech is easy, the business isn't ready"):

- **The tech is not the easy part for oversight.** The deference RCT shows trained experts adopt an agent's arbitrary choices 86% of the time; Anthropic's auto-mode classifier misses 17% of real dangerous overeager actions; Anthropic's own incident log includes production-database migration attempts. These are model-behaviour and human-factors problems, not

business-readiness problems. A perfectly documented workflow does not fix them. https://www.anthropic.com/research/agents-judgment-calls ; https://www.anthropic.com/research/claude-code-auto-mode

- **Writing the workflow down does not reliably help the agent.** The best controlled test of repository context files found lower success and higher cost (Gloaguen et al., 2026). Verification-pass correction: the negative result is driven by LLM-generated context files; developer-written files tended to slightly improve success, and the authors recommend human-written files that state only minimal requirements. So the finding challenges auto-generated context, and mildly supports concise human-written context, at least for coding agents. https://arxiv.org/abs/2602.11988
- **Non-experts succeed almost as often as experts in agentic coding** (88% vs 89% at least partial success), which cuts against the idea that people must first learn a whole new way of working before agents deliver. https://www.anthropic.com/research/claude-code-expertise
- **Workers' resistance is selective, not blanket.** WORKBank workers were positive about automating 46.1% of tasks; they mainly want partnership on the rest. https://arxiv.org/abs/2506.06576

Supporting the thesis (but against easy readings):

- **Coordination-dependent change does not happen by itself.** Copilot cut email time but not meetings, because meetings need others to change too. https://www.microsoft.com/en-us/research/publication/shifting-work-patterns-with-generative-ai/
- **Klarna** shows a firm that had the technology and deployed it, then reversed on service quality, which is a design and evaluation failure as much as a tech failure.

Against the mainstream reading of this track:

- "Human in the loop" is often presented as the safety answer. The evidence above (93% prompt acceptance, 86% deference, "Bias in the Loop" finding that forced correction increased acceptance of errors) says it is a weak control unless designed carefully.
- "Agents everywhere" is not what usage data show: about half of agentic API traffic is software engineering and no other domain exceeds a few percent (Feb 2026).

Open questions

- Do deference effects hold outside a lab task, e.g. in finance, legal or HR decisions where agents now run? Is there any field study of reviewer accuracy on agent output at scale?
- What does the March 2026 "sharp decrease" in API automation actually measure (product mix, Claude Code traffic moving, or a real shift)? Numbers are in an appendix PDF not retrievable this session.
- Are there any firm filings (10-K, annual reports) that quantify AI-attributed headcount change with method, rather than CEO remarks?
- Do non-coding context artefacts (SOPs, Skills for finance or ops) improve outcomes? All controlled evidence found is for coding agents.
- When is a general-purpose business agent "high-risk" under Annex III (e.g. an agent that allocates work or screens applicants as one of many tasks)? Commission guidance on classification was not sourced.
- Does the PLD's "destruction or corruption of data" head of damage reach business-agent errors that delete or corrupt a customer's records? How have member states transposed it?

- Is there real claims data on AI-error insurance, or only product launches? (Only launches and exclusion filings found.)
- UK and US positions on agent liability, and NIST AI RMF uptake: not sourced.
- Do new titles ("AI agent specialist", "agent ops") show up in job-posting data at meaningful volume?

What's genuinely uncertain

- Almost all agent-oversight telemetry comes from one vendor (Anthropic) on its own products, classified by its own model, and is dominated by software engineering. It is the best data available, and it is not independent.
- Whether experienced users' shift from approval to interruption is better oversight or just less oversight. Anthropic reads rising interrupts as active monitoring; it could also reflect harder tasks.
- Whether automation share in enterprise use is rising or falling: the Sept 2025, Jan 2026 and Mar 2026 Anthropic reports point in different directions.
- The size of real role elimination: the headline cases are CEO statements with no method.
- The legal picture beyond one Canadian small-claims decision and the EU texts. The EU rules summarised here come from law-firm and vendor summaries, not EUR-Lex, and search extracts gave conflicting application dates for Articles 14 and 26 (the omnibus dates in track 9 are the better-sourced ones).

Numbers for the facts file

Figure	What it measures	Source	URL	Date	Reliability note
86%	Share of analytical choices where analysts followed a coin-flipped agent lean (50% = no effect)	Anthropic, Herdağdelen, Joren, Tamkin	https://www.anthropic.com/research/agents-judgment-calls	2026-10-27	RCT, n=50 analysts, vendor-run, lab task
60% vs 6%	Switch rate away from own stated preference when agent disagreed vs agreed	Same	https://www.anthropic.com/research/agents-judgment-calls	2026-10-27	Only 38 cases; CI on gap 24 to 82 pp
77% / 15%	Analysts reusing agent arguments / crediting the agent	Same	https://www.anthropic.com/research/agents-judgment-calls	2026-10-27	Self-reported explanations
93%	Share of manual permission prompts users accept in Claude Code	Anthropic engineering	https://www.anthropic.com/research/claude-code-auto-mode	2026-03-25	Vendor product data, method not detailed
17%	False-negative rate of auto-mode classifier on real overeager actions	Same	https://www.anthropic.com/research/claude-code-auto-mode	2026-03-25	n=52 real cases, small
~20% to >40%	Sessions with full auto-approve, new (<50 sessions) vs experienced (750) Claude Code users	Anthropic	https://www.anthropic.com/research/measuring-agent-autonomy	2026-02-18	Vendor telemetry; default is manual approval
5% to ~9%	Per-turn interrupt rate, new vs experienced users	Same	https://www.anthropic.com/research/measuring-agent-autonomy	2026-02-18	Vendor telemetry

Figure	What it measures	Source	URL	Date	Reliability note
73% / 80% / 0.8%	API tool calls with a human in the loop / with at least one safeguard / irreversible	Same	https://www.anthropic.com/research/measuring-agent-autonomy	2026-02-18	Inferred by Claude from single tool calls; cannot see downstream review
~50%	Software engineering share of agentic tool calls on Anthropic public API	Same	https://www.anthropic.com/research/measuring-agent-autonomy	2026-02-18	n=998,481 tool calls
70% / 20%	User share of planning / execution decisions in Claude Code sessions	Anthropic	https://www.anthropic.com/research/claude-code-expertise	2026-06-16	~400k sessions, classifier-based
88% vs 89%	At least partial success, non-software vs software occupations, code-producing sessions	Same	https://www.anthropic.com/research/claude-code-expertise	2026-06-16	Success partly user-confirmed
77% vs 12%	Automation vs augmentation share of 1P API transcripts	Anthropic Economic Index	https://www.anthropic.com/research/anthropic-economic-index-september-2025-report	2025-09-15	Share of transcripts, not of businesses; later reports show decline
27% to 39%	Directive (full delegation) share of Claude.ai conversations, late 2024 to Aug 2025	Same	https://www.anthropic.com/research/anthropic-economic-index-september-2025-report	2025-09-15	Reversed by Nov 2025 data
52% / 45%	Augmented / automated share of Claude.ai conversations, Nov 2025	Anthropic Economic Index	https://www.anthropic.com/research/anthropic-economic-index-january-2026-report	2026-01-15	Vendor telemetry
0.24 SD	Team advantage over individuals without AI; closed by individual with AI	Dell'Acqua et al., NBER 33641	https://www.nber.org/papers/w33641	2025-03	n=776, one-day task; snippet only this session
12-16 %	Time saved by AI groups, P&G experiment	Same	https://www.nber.org/papers/w33641	2025-03	Snippet only
14% (WP) / 15% (QJE)	Productivity gain, customer support agents	Brynjolfsson, Li, Raymond	https://econpapers.repec.org/RePEc:nbr:nberwo:31161	2023 / 2025	One firm, ~5,170 agents; snippet only
3 hours, 25%	Weekly email time reduction for Copilot users (ITT 1.4 h); no change in meetings	Dillon et al., Microsoft	https://www.microsoft.com/en-us/research/publication/shifting-work-patterns-with-generative-ai/	2025-04	RCT, 6,000 workers, 56 firms; Microsoft authors
46.1%	Tasks where workers were positive about agent automation	Shao et al., Stanford WORKBank	https://arxiv.org/abs/2506.06576	2025-06	Survey, 1,500 workers; snippet only
>20%	Inference cost increase from repository context files, with lower or no better success	Gloaguen et al.	https://arxiv.org/abs/2602.11988	2026-02-12	Snippet only; check full paper for effect sizes
-28.64%	Median agent runtime with AGENTS.md (124 PRs, 10 repos)	Lulla et al.	https://arxiv.org/abs/2601.20404	2026-01-28	Small, efficiency only; snippet only
				2025-12-09	

Figure	What it measures	Source	URL	Date	Reliability note
60,000+	Projects reported to use AGENTS.md	AAIF launch coverage	https://sdtimes.com/ai/linux-foundation-forms-agentic-ai-foundation-to-be-new-home-for-mcp-goose-and-agents-md/		Self-reported by backers; another outlet said 40,000
1M / ~280M	Agent Skills published / installed	Anthropic	https://www.anthropic.com/news/donating-agent-skills-to-the-agentic-ai-foundation	2026-10-22	Vendor claim, no method
10,000+ / 97M+	Active public MCP servers / monthly SDK downloads	Anthropic	https://www.anthropic.com/news/donating-the-model-context-protocol-and-establishing-of-the-agentic-ai-foundation	2025-12-09	Vendor claim; downloads include CI
~9,000 to ~5,000	Salesforce support headcount per CEO	Benioff on Logan Bartlett Show via Fortune	https://dc.fortune.com/2025/09/02/salesforce-ceo-billionaire-marc-benioff-ai-agents-jobs-layoffs-customer-service-sales	2025-09-02	Spoken claim, no timeframe; snippet only
"hundreds"	IBM HR roles replaced by AI agents	Krishna to WSJ via Entrepreneur	https://www.entrepreneur.com/business-news/ibm-ceo-ai-replaced-hundreds-of-human-resources-staff/491341	2025-05	CEO statement; snippet only
33% / 78%	Leaders considering headcount cuts / AI-specific hires	Microsoft WTI 2025	https://www.microsoft.com/en-us/worklab/work-trend-index/2025-the-year-the-frontier-firm-is-born	2025-04-23	Vendor survey, n=31,000, intentions only
CAD ~812	Total award in Moffatt v Air Canada	2024 BCCRT 149 via McCarthy Tétrault	https://www.mccarthy.ca/en/insights/blogs/techlex/moffatt-v-air-canada-misrepresentation-ai-chatbot	2024-02	Snippet only; not binding precedent
>=6 months	Minimum log retention for deployers of high-risk AI (AI Act Art. 26)	Regulation (EU) 2024/1689 via Mishcon de Reya	https://mishcon.com/eu-uk-ai-navigator/article-26	2024 (applies Dec 2027 for Annex III after omnibus)	Search extract; check EUR-Lex
9 Dec 2026	Transposition deadline, Product Liability Directive 2024/2853 (software and AI as products)	Norton Rose Fulbright	https://connections.nortonrosefulbright.com/post/102jpjp/revised-product-liability-directive-introducing-rules-on-strict-liability-for-ai	OJ 18 Nov 2024	Search extract
6 Oct 2025	Reported OJ date of formal AI Liability Directive withdrawal (announced Feb 2025)	EAPIL	https://eapil.org/2025/10/09/european-commission-withdraws-two-proposals-assignments-of-claims-regulation-and-ai-liability-directive/	9 Oct 2025	Single source for the exact date
$25m	Per-insured limit, Armilla Lloyd's-backed AI liability cover (launched 30 Apr 2025)	Armilla	https://www.armilla.ai/resources/armilla-ai-raises-lloyds-backed-coverage-to-25m-as-traditional-insurers-retreat-from-ai-risk	2025-2026	Vendor announcement; no claims data
50 (11 in 2025)	ISO/IEC 42001 certificates issued by BSI	BSI	https://www.bsigroup.com/en-GB/insights-and-media/media-centre/press-releases/2026/november/bsi-awards-its-50th-iso-iec-42001-certificate/	Nov 2026	One certifier only; no global registry
~1.19M /	GitHub code-search hits for files named	GitHub search API,	https://api.github.com/search/code?q=filename:AGENTS.md	2026-11-06	DO NOT CITE: GitHub's total_count is approximate and includes forks

Figure	What it measures	Source	URL	Date	Reliability note
~1.03M	AGENTS.md / CLAUDE.md	queried by this agent			and vendored copies; same query gave ~7M for SKILL.md, which looks implausible

Verbatim quotes

- "Across the four analytical choices, analysts went with their agent's lean 86% of the time." (Amaç Herdağdelen, Hailey Joren, Alex Tamkin, Anthropic, "How AI agents shape experts' judgment calls", 27 Oct 2026) https://www.anthropic.com/research/agents-judgment-calls. Context: RCT where agent preferences were set by coin flip. Verified: curl+grep
- "a human reviewer is only an independent check if their judgment is their own" (same authors, same page, 27 Oct 2026) https://www.anthropic.com/research/agents-judgment-calls. Context: why deference matters for oversight. Verified: curl+grep
- "Manual prompts sit in the middle, and in practice users accept 93% of them anyway." (Anthropic engineering, "How we built Claude Code auto mode", 25 Mar 2026) https://www.anthropic.com/research/claude-code-auto-mode. Context: approval fatigue in step-by-step oversight. Verified: curl+grep
- "The 17% false-negative rate on real overeager actions is the honest number." (same page, 25 Mar 2026) https://www.anthropic.com/research/claude-code-auto-mode. Context: residual risk of classifier-based approvals. Verified: curl+grep
- "effective oversight doesn't require approving every action but being in a position to intervene when it matters" (Anthropic, "Measuring AI agent autonomy in practice", 18 Feb 2026) https://www.anthropic.com/research/measuring-agent-autonomy. Context: Anthropic's interpretation of rising auto-approve and interrupt rates. Verified: curl+grep
- "existing models are capable of more autonomy than they exercise in practice" (same page, 18 Feb 2026) https://www.anthropic.com/research/measuring-agent-autonomy. Context: the "deployment overhang" argument. Verified: curl+grep
- "On average, people make about 70% of the planning decisions but only 20% of the execution decisions" (Anthropic, "Agentic coding and persistent returns to expertise", 16 Jun 2026) https://www.anthropic.com/research/claude-code-expertise. Context: division of labour in ~400k sessions. Verified: curl+grep
- "77% of API transcripts show automation patterns (especially full task delegation) versus just 12% for augmentation" (Anthropic Economic Index, 15 Sept 2025) https://www.anthropic.com/research/anthropic-economic-index-september-2025-report. Context: enterprise API use. Verified: curl+grep
- "primarily impacted behaviors that could be changed independently and not behaviors that required coordination to change" (Dillon, Jaffe, Immorlica, Stanton, Microsoft Research abstract, Apr 2025) https://www.microsoft.com/en-us/research/publication/shifting-work-patterns-with-generative-ai/. Context: Copilot RCT, email vs meetings. Verified: curl+grep
- "someone who builds, delegates to, and manages agents to amplify their impact" (Microsoft Work Trend Index 2025, definition of "agent boss", 23 Apr 2025) https://www.microsoft.com/en-us/worklab/work-trend-index/2025-the-year-the-frontier-firm-is-born. Context: vendor framing (OPINION). Verified: curl+grep
- "Some may blend HR and IT or create new leadership roles" (same, 23 Apr 2025) https://www.microsoft.com/en-us/worklab/work-trend-index/2025-the-year-the-frontier-firm-is-born. Context: org-design forecast. Verified: curl+grep

- "So far, 1 million skills have been published and nearly 280 million installed." (Anthropic, "Donating Agent Skills to the Agentic AI Foundation", 22 Oct 2026) https://www.anthropic.com/news/donating-agent-skills-to-the-agentic-ai-foundation. Context: vendor adoption claim. Verified: curl+grep
- Paraphrase only (not fetched): the Moffatt tribunal called Air Canada's suggestion that its chatbot was a separate legal entity responsible for its own actions a "remarkable submission" (para 27, per commentary snippets).

Sources worth reading in full

1. Anthropic, "How AI agents shape experts' judgment calls" (Oct 2026): the most direct evidence on whether human oversight of agents is real. https://www.anthropic.com/research/agents-judgment-calls
2. Anthropic, "Measuring AI agent autonomy in practice" (Feb 2026): the only large dataset on how people actually supervise agents, with a candid limitations section. https://www.anthropic.com/research/measuring-agent-autonomy
3. Gloaguen et al., "Evaluating AGENTS.md" (Feb 2026): the best controlled test of whether context files help; negative result. https://arxiv.org/abs/2602.11988
4. Dell'Acqua et al., "The Cybernetic Teammate" (NBER, 2025): the cleanest field experiment on AI as a teammate inside a real firm. https://www.nber.org/papers/w33641
5. Anthropic, "How we built Claude Code auto mode" (Mar 2026): concrete numbers on approval fatigue and residual risk of automated oversight. https://www.anthropic.com/research/claude-code-auto-mode
6. Dillon et al., "Shifting Work Patterns with Generative AI" (Microsoft/NBER, 2025): shows which work changes and which does not without coordination. https://www.microsoft.com/en-us/research/publication/shifting-work-patterns-with-generative-ai/
7. Anthropic, "Agentic coding and persistent returns to expertise" (Jun 2026): who decides what in agentic work. https://www.anthropic.com/research/claude-code-expertise
8. Shao et al., Stanford WORKBank (2025): what workers want automated vs kept. https://arxiv.org/abs/2506.06576
9. Brynjolfsson, Li, Raymond, "Generative AI at Work" (QJE 2025): the reference case for gains concentrated among novices. https://econpapers.repec.org/RePEc:nbr:nberwo:31161
10. Anthropic Economic Index, Sept 2025, Jan 2026 and Mar 2026 reports, read together: the automation share moves around more than any single headline suggests. https://www.anthropic.com/research/anthropic-economic-index-september-2025-report
11. AI Act Articles 14 and 26 in the Official Journal text: the legal definition of human oversight and the deployer's duties, including the automation-bias clause. https://eur-lex.europa.eu/eli/reg/2024/1689/oj
12. Product Liability Directive (EU) 2024/2853, via Norton Rose Fulbright's summary: the liability regime that actually applies to AI software in the EU from December 2026. https://connections.nortonrosefulbright.com/post/102jpjp/revised-product-liability-directive-introducing-rules-on-strict-liability-for-ai